ORDER BY FRANK L. POLK

UNDER AUTHORITY OF EXECUTIVE ORDER OF

December 3rd, 1918.

AN ORDER REJECTING THE BID OF ELMER C. BINDER FOR 1,008 SHARES OF THE CAPITAL STOCK OF ERNST GIDEON BEK, INC., A CORPORATION OF THE STATE OF NEW YORK, AND EVERY RIGHT PRIVILEGE AND BENEFIT GIVEN TO ERNST GIDEON BEK BY THAT CERTAIN CONTRACT MADE AND ENTERED INTO, BY AND BETWEEN HIM AND ERNST GIDEON BEK, INC., ON, TO WIT: THE SIXTEENTH DAY OF APRIL, 1913, ALL OF WHICH WAS OFFERED FOR SALE AT PUBLIC AUCTION ON THE SECOND DAY OF MAY, 1919, PURSUANT TO THE "TRADING WITH THE ENEMY ACT" AND AMENDMENTS THERETO.

By virtue of the authority vested in the President by "An Act to define, regulate and punish trading with the enemy, and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendment to such Act embodied in "An Act making appropriations to supply urgent deficiencies in appropriations for the fiscal year ended June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such Act embodied in "An Act making appropriations to supply deficiencies in appropriations for the fiscal year ended June 30, 1919, and prior fiscal years on account of war expenses and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, which authority has been delegated to me by the Executive Order No. 3016 signed by the President under the third day

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of December 1918, I hereby, in the public interest, make the following determination and order:

The Alien Property Custodian having offered at public sale in the office of the Company at 15-17-19 Maiden Lane, New York City, in the State of New York, at 11 o'clock A.M. on the second day of May, the following property to wit:

(1) 837 shares of the common capital stock of Ernst Gideon Bek, Inc., a corporation of the State of New York, of the par value of $100 each, out of 1,008 shares of the common capital stock of said corporation, all of which are issued and outstanding.

(2) Every right, privilege and benefit which was given to Ernst Gideon Bek by that certain contract made and entered into, by and between the said Ernst Gideon Bek and Ernst Gideon Bek, Inc., on, to wit: the 16th day of April, 1913 (which said contract is embodied in the minutes of the incorporators and in the minutes of a meeting of the directors of the said corporation bearing the said date), including the right to have issued to the said Ernst Gideon Bek eleven shares of the capital stock of the said corporation out of a total of 1,019 shares provided in said contract to be issued: and also all accretions, accumulations and additions thereto and the income and profits derived therefrom by and in the hands of said corporation and also every right, title and claim for damages or compensation, or otherwise against said corporation growing out of said contract or growing out of any income or interest or profits derived therefrom.

At the same time and place, and as a part of the same sale, Elmer C. Binder, having offered seventy shares, Lawrence O. Binder seventy shares, Otto Herman Klebsattel

thirty shares, and Emil Feyler one share of the capital stock of said company, being together with those offered by the Alien Property Custodian, all the outstanding shares of the capital stock of said company.

at which sale the highest bid received for said property, including the 171 shares offered by the private owners thereof, was the sum of $50,400 made by Elmer C. Binder.

It is therefore Ordered that the Alien Property Custodian be, and he is authorized, and shall have the right to reject all bids including the bid of the said Elmer C. Binder, and to resell such property, but only to American citizens at public sale to the highest bidder after public advertisement of the time and place of sale which shall be where the property or a major portion thereof is situated, as provided by the "Trading with the Enemy Act" as amended, and the executive orders and proclamations issued pursuant thereto.

The reason for the foregoing order is that the price bid for said property by the said Elmer C. Binder, to wit: the sum of $50,400 is inadequate and not the fair value of the property offered for sale.

Done in the District of Columbia, this the 29th day of May, in the year of our Lord one thousand nine hundred and nineteen, and of the independence of the United States of America the one hundred and forty-third.

Frank L. Polk

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